Committee Secretary
Joint Standing Committee on Electoral Matters

Via email: em@aph.gov.au

Dear Secretary,

Thank you for the opportunity to make a submission to the Inquiry into the 2025 Federal Election.

While the committee intends to look at a range of matters relating to the conduct of the 2025 Federal Election, I would like to make comments specifically about the composition of the Parliament including the length of the parliamentary term, fixed terms, and the number of members.

I primarily would like to bring to the committee's attention a number of constitutional discussions which should take place prior to any proposal to move from three to four-year terms and fixed terms and the implications these changes will have on the power balance between the House of Representatives and the Senate.

I have previously worked for ministers in the Queensland State Government and am a Queensland-based law student graduating this year. As a self-professed "constitutional nerd", I have a deep interest in Australian and comparative constitutional law (Canada, Ireland, India, United States) and it would be remiss of me not to provide my two cents to the committee on this matter.

In short, I believe:

- fixed four-year terms should be adopted for the House of Representatives to reduce cost and uncertainty in the community. It would also provide governments with a more realistic policy window to fulfill their election commitments.

- simultaneous elections should be adopted for the House and Senate. All mainland Australian States prove this is not only practicable but possible.

- if fixed terms are adopted, s 57 should be amended so a double dissolution cannot take place within 12 months of the next scheduled House election and to prevent the banking of 'trigger' Bills to circumvent fixed terms.

- if fixed terms are adopted, either the Senate should lose its power to block supply for the ordinary annual appropriations OR the Governor-General should be granted the power to call a general election if the Senate blocks supply.

- if a fixed four-year term referendum is put to the electors, a question should accompany it allowing the people to decide whether the Senate should serve a four-year term, or an eight-year term.

- if four-year terms are adopted for the House and the Senate, the double dissolution mechanism will need to be reviewed to ensure there is a mechanism to resolve disputes between the Houses.

- to avoid political disputes around Territory representation in the Senate, the Australian Capital Territory and the Northern Territory should be entitled to half the representation of an Original State in the Senate (presently this would be six each).

- if the government decides not to proceed with a fixed four-year referendum, it should consider adopting a statutory fixed three-year term.

- a referendum should only be put to the electors with widespread support in the Parliament, and preferably with other minor changes (as one omnibus amendment) to resolve other issues (i.e. around Territory Senate representation and the nexus).

Fixed Four-Year Terms

Every Australian State has now successfully transitioned from three-year terms to four-year terms, with New South Wales, Victoria, and Queensland moving to entrench fixed terms.[1] Like many Australians I believe the advantages of a fixed four-year term outweigh retaining the existing three-year terms.[2]

Fixed terms have been successfully implemented across the States and demonstrate that they can reduce costs, provide certainty to the electorate and businesses, and in the case of fixed four-year terms, provide the executive with more time to focus on policy development and implementation, rather than election cycles. They also remove one of

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[1] Finance and Administration Committee, Queensland Parliament, *Inquiry into the introduction of four year terms for the Queensland Parliament, including consideration of Constitution (Fixed Term Parliament) Amendment Bill 2025 and Constitution (Fixed Term Parliament) Referendum Bill 2015*, Report No. 16. November 2015, 16 <http://cabinet.qld.gov.au/documents/2015/Nov/Intro4yrterms/Attachments/FACRep16.pdf>

[2] Simon Benson, 'Newspoll shows 51 per cent of voters favour four-year terms' *The Australian* (online, 25 March 2024) <http://theaustralian.com.au/nation/politics/newspoll-bare-majority-of-voters-favour-fixed-fouryear-federal-parliamentary-terms/news-story/a8cc9bd94ef8af46debbce0510cc89a2>

the few flaws in the system of responsible government which allows the incumbent government to call a snap election in order to take advantage with the opposition rather than a fair fight on policy.[3]

While fixed three-year terms would be an improvement on the existing arrangements, they would lack the benefits offered by extending the term to four years. Under a three-year term, governments really only have 18 months to implement policies as during the first six months the government is settling into office and then spends the last six months preparing for the upcoming election.[4]

Properly framed, like the model adopted in New South Wales and Queensland, fixed terms can be integrated into the system of responsible government by allowing the Governor-General to dissolve the Parliament under certain circumstances such as a loss of confidence or supply in the House.[5] New South Wales and Queensland appear to me to be the drafted in a manner which would be suitable for the Commonwealth's *Constitution*.

Recommendation 1: The committee should recommend the adoption of fixed four-year terms for the House of Representatives.

Ensuring simultaneous elections

Moving to simultaneous elections, as proposed in 1977,[6] would be a clear improvement. The current mix of three-year House terms staggered but fixed Senate terms, back-dated commencements, half-Senate windows and occasional double dissolutions adds unnecessary confusion to what should be a simple element of the *Constitution*. We have not had a separate Senate election since 1970 and voters now rightfully expect both elections for both Houses to be held on the same day.

If the House was fixed to a four-year term, each general election of the House should coincide with either a whole-Senate poll (if the Senate has a four-year term) or a half-Senate poll (if the Senate has an eight-year term). This gives a predictable timetable and lowers cost and confusion. New South Wales shows the model works: fixed four-year Assembly terms and a Legislative Council elected by halves at each election deliver stable,

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[3] See: Phillip Coorey, 'Australia's long history of short governments' *Australian Financial Review* (online, 20 March 2024) <https://www.afr.com/politics/federal/australia-s-long-history-of-short-governments-20240319-p5fdgg>; Simon Prasser, 'The case against four-year terms for the Commonwealth Parliament' (2024) 39(1) *Australasian Parliamentary Review* 13, 14-15.
[4] Carly Schrever, 'Will Changes in Political Leadership Lead to Constitutional Change?' (2018) 92(11) *Australian Law Journal* 855, 857-858.
[5] See: *Constitution Act 1902* (NSW), s 24B; *Constitution Act* 1975 (Vic), s 8(3);and *Constitution Act 2001* (Qld), s 19E
[6] See, Constitutional Alteration (Simultaneous Elections) Bill 1977 (Cth).

simultaneous elections.[7] The committee should recommend that the same clear approach be adopted.

Recommendation 2: The committee should recommend the adoption of simultaneous elections for the House of Representatives and the Senate.

Changes to s 57 to protect fixed terms

I note that to preserve fixed terms, section 57 would also require a change to increase the time-limit on the use of a double dissolution ahead of an ordinary House election. At present s 57 provides that a double dissolution cannot be called within six months before the expiry of the House.[8] This period should be extended under fixed terms so a double dissolution cannot be called within 12 months before the next scheduled general election under the fixed-term timetable. It should also include a new provision requiring any 'trigger Bills' to expire after one month to ensure a government cannot bank triggers to use as a way to circumvent fixed elections.

These safeguard would prevent a government from using the double dissolution mechanism to engineer an early election contrary to the spirit of fixed-terms, while still leaving a reasonable window to resolve genuine deadlocks which arise during most of the term. These changes align the deadlock mechanism with the primacy of fixed terms, deter tactical dissolutions, and give voters certainty about the maximum duration of a Parliament.

Recommendation 3: If fixed terms are put to a referendum, it should include a change to s 57 so that a double dissolution cannot be called within 12 months of the next ordinary House election and that 'trigger Bills' must be used within one month.

The Senate's power to block supply

The Australian Senate is unique among Westminster upper houses by holding the power to block supply bills.[9] While at the time of the Constitution's drafting this provision reflected the powers of the House of Lords. Those powers were eventually stripped from the Lords with the passage of the *Parliament Act 1911* (UK).[10] Australia's States followed this trend by removing the ability of their upper houses to block supply, New South Wales did so in 1933 and Victoria in 2004 when it adopted fixed four-year terms for both Houses.[11]

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[7] *Constitution Act 1902* (NSW), ss 22A and 22B.
[8] *Australian Constitution*, s 57.
[9] Ibid, s 53; and Rosemary Laing (ed), *Odgers' Australian Senate Practice* (Department of the Senate, 14th ed, 2016), 717-718.
[10] *Parliament Act 1911* (UK), s 1.
[11] See: Lynn Lovelock and John Evans, *New South Wales Legislative Council Practice* (The Federation Press, 2008), 32-25; and Dr Stephen Redenbach, 'Victoria's house of review: Ten years after', *Australasian*

There is a risk that if fixed terms were introduced, without reforms to the Senate's power to block supply, that Australia could accidentally create a situation like that which the United States' experiences from time to time. If the Senate blocked supply, the government would be unable to dissolve the Parliament and the government would risk running out of supply. This would in effect create a US style government shut down while awaiting the two Houses to reach a compromise. While unlikely, the introduction of fixed terms without concurrent reforms to s 53 could lead to this outcome and the committee should consider this carefully.

The committee should therefore only recommend the adoption of fixed terms if it is accompanied by reforms to the Senate's power to block supply or ensure a general election may take place if the Senate exercises the power.

Recommendation 4: If fixed terms are adopted, the Senate's power to block supply for the ordinary annual services should be eliminated or if exercised should allow the Governor-General in Council to dissolve the Parliament (causing a House and half-Senate election).

Senate terms: four or eight years?

The real question regarding the debate over three- or four-year terms is what should occur to the Senate. At present State senators are elected for fixed six-year terms, so that half the Senate is elected.[12]

Moving the House to four years necessarily raises whether senators should serve eight years (retaining rotation) or four years (with whole-Senate elections), and how any choice will interact with supply and deadlock procedures in the Constitution.

Each model has merit. Eight-year terms allow half-Senate elections which provide stability, institutional memory, and continuity in the Senate's committees. Four-year terms allow whole-Senate elections which would provide greater responsiveness, clearer lines of accountability, and a closer link between national opinion and the Senate's composition.

It is often observed that progressive parties and commentators tend to prefer a whole-Senate election every four years on democratic-responsiveness grounds,[13] while

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Parliamentary Review (2014) 29(2) 1, 2 <https://www.aspg.org.au/wp-content/uploads/2017/08/Victorias-house-of-review-Ten-years-after-1.pdf>

[12] *Australian Constitution*, ss 7 and 13.

[13] See: John Faulkner, 'A Labor Perspective on Senate Reform' 2023 ALP National Platform (online, 2023) <https://www.alp.org.au/media/3569/2023-alp-national-platform.pdf>

conservative parties and commentators tend to favour eight-year terms elected in halves to protect continuity and the Senate's reviewing character.[14]

There are longstanding arguments in favour of staggered terms. The classic argument is that an upper house renewed by classes moderates sudden shifts in public opinion, reduces legislative volatility, and provides a forum with longer time horizons for scrutiny of complex policy.[15]

Australian practice at the State level reinforces these benefits: both New South Wales and South Australia retain upper houses with eight-year terms elected by halves at each four-year general election. At a State level those arrangements have supported steady committee work and protected minority and regional voices.

However, the committee should consider the impact eight-year terms will have on casual vacancies. The experience in New South Wales indicates that longer, staggered terms can coincide with a higher rate of casual vacancies, as members depart mid-term for electoral or career reasons. By contrast, Victoria's whole-of-chamber, four-year cycle has generally seen fewer mid-term replacements relative to chamber size and duration.

While institutional, cultural, and partisan factors also matter, the pattern suggests that longer, staggered terms can produce more churn via vacancies, which in turn places greater weight on appointment mechanisms rather than direct election.

Figure 1: Casual vacancy appointments in the New South Wales Legislative Council

Party	**1980-1990**	**1990-2000**	**2000-2010**	**2010-2020**	**2020-2024**
Labor	5	6	6	10	...
Liberal	2	2	2	2	4
Call to Australia	1	...	1	...	...
Nationals	...	2	2	3	2
Democrats	...	1	...	...	...
CDP	...	...	1	...	...
The Greens	...	...	...	6	1
SFP	...	...	...	1	...
One Nation	...	...	...	...	1
TOTAL	**8**	**11**	**12**	**22**	**8**
Per year	*0.8*	*1.1*	*1.2*	*2.2*	*2*

Figure 2: Casual vacancy appointments in the Victorian Legislative Council

[14] ABC News, 'PM releases Senate reform proposals' (online, 8 October 2003) <https://www.abc.net.au/news/2003-10-08/pm-releases-senate-reform-proposals/1489962>
[15] See James Madison's comment in Federalists No. 62 and 63.

Party	2004-2010	2010-2020	2020-2024
Labor	1	4	3
Liberal	...	2	2
Nationals	...	3	...
Greens	...	2	1
LDP	...	...	1
TOTAL	**1**	**12**	**7**
Per year	*0.17*	*1.2*	*1.75*

The decision of whether the Senate term should be reduced to four or extended to eight years is very much a policy choice rather than a legal one.

My own preference is that arguments in favour of eight-year terms generally outweigh those of four-year terms. However, it would be far more appropriate at any referendum for fixed terms, for the people directly to decide whether they support fixed four-year terms for the House and to then be asked if fixed four-year terms are adopted whether they prefer four- or eight-year terms for the Senate.

Additional considerations for four-year terms

If the Senate were to adopt four-year terms with whole-chamber elections, the committee should not overlook the flow-on effects for the current double dissolution mechanism.[16] In practice, every general election would be a double dissolution as all senators and members of the House would face the electors together, weakening the logic of a dissolution reserved for entrenched deadlocks. As I have already mentioned it may also be utilised by governments as a way to circumvent the fixed terms of both Houses which risks the present benefit of the Senate as a fixed-term house.

This does not mean s 57 should not be removed entirely. As Richard O'Connor distinguished, there are two types of deadlocks. Ordinary ones which can be solved by compromise, and dangerous ones which require a specific mechanism to resolve.[17] Even if the Senate lost its power to block the annual appropriation Bills, it would still retain the significant power to block all other legislation including taxation Bills. Therefore an alternative mechanism to resolve disputes between the two Houses will still be required.

One alternative is to remove the provision requiring a dissolution before a joint sitting can be called by the Governor-General. This approach has been adopted in the Republic of India,[18] and a similar concept was publicly supported by Prime Minister John Howard in the

[16] *Australian Constitution*, s 57.
[17] See, Brian Galligan, 'The Founders' Design and Intentions Regarding Responsible Government' (1980) 15(2) *Australian Journal of Political Science* 1.
[18] See, *Constitution of India*, Art 108.

early 2000s as a means of resolving persistent impasses without resorting to costly elections.[19]

Any decision to reform s 57 to a joint sitting model should preserve the Senate's core function as a House of review with the power to block legislation which lacks widespread appeal or support in the community.[20]

A supermajority threshold, such as requiring approval by three-fifths of the total number of members of both Houses voting together would ensure that the upper house retains a meaningful check on the House's power. Such a requirement would prevent a government with only a narrow House majority from overriding the Senate, while still allowing a government with broad parliamentary support to secure passage of measures with a clear mandate.

Only two elections have resulted in the government securing a three-fifths majority in a joint sitting since 1949, in 1975 and 1977 respectively. This however does not mean the mechanism would not be useful. In many cases, the government has only been a few votes from reaching this majority threshold.

Consider, for example, a government which holds a large majority in the House and, with the backing of roughly ten independents, secures about two-thirds support for a Bill in that chamber. But in the Senate, the opposition and a sizeable crossbench of twenty or more prevents passage. Under a three-fifths joint-sitting threshold, the government might not reach the margin on its numbers alone, but the House crossbench's support in a joint sitting could carry the measure, allowing a broad parliamentary majority to overcome a Senate veto.

Figure 3: Composition of a hypothetical joint sitting after each Federal election since 1949, and whether the Commonwealth Government reaches an absolute, or three-fifths majority

Election (seats)	Govt	Opp+Oth	Absolute Majority?	Three-Fifths Majority?
1949 (181)	100	81	**Yes (+10)**	No (-9)
1951 (181)	101	80	**Yes (+11)**	No (-8)
1954 (181)	95	86	**Yes (+5)**	No (-14)
1955 (182)	105	77	**Yes (+14)**	No (-5)
1958 (182)	109	73	**Yes (+18)**	No (-1)
1961 (182)	92	90	**Yes (+1)**	No (-18)
1963 (182)	102	80	**Yes (+11)**	No (-8)

[19] Helen Irving, 'Howard's constitutional reforms need to be thorough, not piecemeal' *The Sydney Morning Herald* (online, 9 June 2003) <https://www.smh.com.au/national/howards-constitutional-reforms-need-to-be-thorough-not-piecemeal-20030609-gdgwd6.html>
[20] Rosemary Laing (ed) (n 9), 28 and 35.

1966 (184)	110	74	**Yes (+18)**	No (-1)
1969 (185)	94	91	**Yes (+2)**	No (-17)
1972 (185)	93	92	**Yes (+1)**	No (-18)
1974 (187)	95	92	**Yes (+2)**	No (-18)
1975 (191)	123	68	**Yes (+28)**	**Yes (+9)**
1977 (188)	119	69	**Yes (+25)**	**Yes (+7)**
1980 (189)	105	84	**Yes (+11)**	No (-9)
1983 (189)	105	84	**Yes (+11)**	No (-9)
1984 (224)	116	108	**Yes (+4)**	No (-19)
1987 (224)	118	106	**Yes (+6)**	No (-17)
1990 (224)	110	114	No (-3)	No (-25)
1993 (224)	110	114	No (-3)	No (-25)
1996 (223)	131	92	**Yes (+20)**	No (-3)
1998 (224)	114	110	**Yes (+2)**	No (-21)
2001 (226)	117	109	**Yes (+4)**	No (-19)
2004 (226)	126	100	**Yes (+13)**	No (-10)
2007 (226)	115	111	**Yes (+2)**	No (-21)
2010 (226)	103	123	No (-11)	No (-33)
2013 (226)	123	103	**Yes (+10)**	No (-13)
2016 (226)	106	120	No (-8)	No (-30)
2019 (227)	112	115	No (-2)	No (-25)
2022 (227)	103	124	No (-11)	No (-34)
2025 (226)	124	102	**Yes (+11)**	No (-12)

As an alternative to a joint sitting provision in place of the double dissolution mechanism could be replaced putting the Bill to a referendum.[21] After a defined period of disagreement and passage of the bill twice by the originating House, the measure could be referred to the people at the next general election at an earlier date by the Governor-General in Council.[22] This option would preserve democratic resolution of genuine deadlocks, allow the electorate to arbitrate disputes between the Houses, and reduce incentives for tactical obstruction by either House.

Either option would be appropriate but with four-year terms for the Senate ending a key element of the double dissolution mechanism, the committee must consider how the two Houses should resolve disputes.

Recommendation 6: If the committee recommends the Senate moves to four-year terms, section 57 should be modified to allow for the resolution of a dispute between

[21] Note: this is not a constitutional amendment referendum, so would not require a 'double majority' but rather just the support of the majority of the electors.
[22] *Constitution Act 1902* (NSW), s 5B. For a detailed explanation, see, Lynn Lovelock and John Evans, *New South Wales Legislative Council Practice* (The Federation Press, 2008), 566-569.

the two Houses to be settled by either: (a) a joint sitting in which a Bill can be adopted with a three-fifths majority; and/or (b) a public referendum.

Statutory fixed three-year terms

The Committee should also not rule out the adoption of a statutory fixed three-year term, similar to that adopted in Canada (although adopted in Canada for a four-year term).

Adopting a statutory fixed term for House elections delivers practical certainty while preserving essential flexibility. It allows a government to seek a fresh mandate through a snap election when circumstances genuinely require it such as a loss of confidence, a legislative impasse, or an unforeseen national event, without the need for complicated constitutional mechanisms which may be challenged in the courts. The default expectation however remains that parliaments serve out their full term, but the power to hold an early election is retained to uphold the principles of responsible government.

A statutory fixed-date model also enables a practical synchronisation of the House and Senate election timetables without the need for a referendum. By selecting a fixed general election month which aligns with the half-Senate cycle, governments can conduct concurrent elections. Over time, consistent alignment will build an expectation for Parliaments to serve their full term without altering the Constitution.[23]

Under s 50 of the *Constitution Act 1867* and s 4 of the *Canadian Charter of Rights and Freedoms* the House of Commons is elected for a term which expires five years following the return of the writ.[24] It may be dissolved sooner by proclamation issued by the Governor-General of Canada. In 2007, the Canadian Parliament adopted an amendment to the *Canada Elections Act* to fix the date of the general election to be on the third Monday of October in the fourth calendar year following the last poll. [25]

Section 56.1(1) of the *Canada Elections Act* retains the Governor-General's constitutional powers to dissolve the Parliament but unless exercised, the fixed term date applies under s 56.1(2).[26] Section 56.1 provides:

> ***56.1 Date of General Election***
>
> *(1) Nothing in this section affects the power of the Governor-General, including the power to dissolve Parliament at the Governor-General's discretion.*

[23] *Constitution Act 1867* (Imp), 30 & 31 Vict, c 3, s 50; and *Canada Act 1982* (UK) c 11, sch B pt I ('*Canadian Charter of Rights and Freedoms*'), s 4.
[24] *An Act to amend the Canada Elections Act*, SC 2007, c 10, s 1.
[25] *Canada Elections Act,* SC 2009, c 9, s 56.1.
[26] Ibid.

(2) Subject to subsection (1), each general election must be held on the third Monday of October in the fourth calendar year following polling day for the last general election, with the first general election after this section comes into force being held on Monday, October 19, 2009.

Figure 4: Elections in Canada since s 56.1 introduced

Parliament elected	Election Date	Early?
40th	14 October 2008	Yes – minority govt called snap election to gain a mandate
41st	2 May 2011	Yes – minority govt lost confidence
42nd	19 October 2015	No – s 56.1(2) applied
43rd	21 October 2019	No – s 56.1(2) applied
44th	20 September 2021	Yes – minority govt called snap election to gain a mandate.
45th	28 April 2025	Yes – minority govt called snap election to gain a mandate

Recommendation 7: If the Government prefers not to move ahead with a referendum, the committee should recommend the adoption of a statutory fixed term for the Parliament.

Other changes: The Nexus & Territorial representation in the Senate

It has been nearly 50 years since the High Court 's decision in *Attorney-General (NSW) v Commonwealth* held (in my view erroneously) that the nexus provision,[27] contained in s 24 of the *Constitution* is a State-based rule.[28] The decision was based on the belief that s 122,[29] was to be an exception to the State-based rules which outline the composition of the House and the Senate.[30] In my view, while it can be considered valid legal logic, the decision in *McKellar* was incorrectly decided and distorts the 2:1 ratio between the House and Senate which was the intent of the provision.

The reason I raise this concern is that any increases in Territory Senate representation will only further distort this ratio. At present the divisor for determining the composition of the House is based on the 72 State senators and this would remain the case even if more Territory senators are added to the Parliament.

[27] *Australian Constitution*, s 24 (the 'nexus clause') provides: "The House of Representatives shall be composed of members directly chosen by the people of the Commonwealth, and the number of such members shall be, as nearly as practicable, twice the number of the senators".
[28] *Attorney-General (NSW) v Commonwealth* ('*McKellar*') (1977) 137 CLR 396, 542-544.
[29] *Australian Constitution*, s 122 provides: "...and may allow the representation of such territory in either House of the Parliament to the extent and on the terms which it thinks fit".
[30] Ibid, 561-562.

As Aiken J pointed out in his dissent in *McKellar*, if the Court considers the Territory senators to be senators as it found in *Western Australia v Commonwealth*,[31] the plain language of s 24 that the House be "...composed of such members shall be, as nearly as practicable, twice the number of the senators".[32]

The nexus is a crucial element of Parliament's designwhich preserves an equilibrium, between the two Houses. It ensures that while the House reflects the democratic principle of representation by population, and the Senate representing the States equally, cannot be overwhelmed in moments of joint decision-making under section 57. The framers intended the nexus' 2:1 ratio would maintain the relative weight of each chamber so neither the popular House nor the States' House could dominate the legislative process. As Edmund Barton and Richard Baker argued at the 1897–98 Conventions, the nexus would safeguard States' representations and prevent the government of the day from artificially inflating House numbers to secure greater influence in a joint sitting.[33] The nexus thus acts as a crucial safeguard for the federal compact and reinforcing the principle that the Commonwealth is a union both of people and of States.

The committee should consider amending the *Commonwealth Electoral Act* to test the holding in *McKellar*, although ideally this could also be resolved through technical amendments as part of a referendum on fixed four-year terms.

Recommendation 8: If there is a referendum on fixed terms, the Government should amend the nexus provision to ensure it includes ALL senators, not just State senators in the calculation of members.

To that end, if the Government is willing to pursue such a reform, it should go the whole way and at any referendum on fixed four-year terms, revise the language of Part II of the *Constitution* to make it clear that the Senate can consist of State and Territory senators. This would put to bed the legal arguments against Territory senators like those contained in the dissenting opinions in *Western Australia v Commonwealth* and *Queensland v Commonwealth*.[34] This could also include an amendment to s 122 which would limit how many senators the Parliament may allocate to a territory as this was a particular concern by the dissenting justices in the *Territory Senators Cases*.

Recommendation 9: If there is a referendum on fixed terms, the Government should take the opportunity to clarify the Territories' right to senators by removing references to the States in Part II. This would include changes to s 122 to limit how many senators

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[31] ('*First Territory Senators' Case*') (1975) 134 CLR 201.
[32] (1977) 137 CLR 396, 576.
[33] Zachery Gorman and Greg Melleuish, 'The Nexus Clause: A Peculiarly Australian Obstacle' (2018) 5(1) *Cognent Arts & Humanities*, 5-8.
[34] See majority decisions in (1975) 134 CLR 201; and (1977) 139 CLR 585.

the Parliament may allocate to a Territory at no greater than half that of an Original State.

Increasing the size of the Parliament

While I was chiefly concerned with the impact of fixed terms on the Senate and its position in the Federal Parliament, I would like to also take the opportunity to indicate my support for an expansion of the Commonwealth Parliament. Given Australia's population growth since the Parliament was last expanded in 1984, it is well overdue.

In my view, the States' representation in the Senate should be increased to 14 senators each. The Territories should also receive increased representation in light of their own population increases.

The Territories are in effect now '*half-States*' and should receive such recognition in the Federal Parliament. For a population of 576,100, Tasmania receives 12 senators (one senator per 48,008 persons). The Australian Capital Territory has a nearly similar population of 483,800 but receives only 2 senators (one per 241,900 persons).[35] While I acknowledge the ACT is not a State, and is designed not to receive the constitutional entitlements of a State, I believe it would now be proper to recognise that it and the Northern Territory are deserving of increased representation.

Comparative constitutional design may be useful here. Switzerland's upper house, the Council of States provides that '*half-cantons*' receive half the representation of full cantons (one member rather than two).[36] That design offers a useful example for Australia when fixing the representation of the Territories in the Senate.

On that model, the Territories would receive half the number of senators to which an Original State is entitled, with the ratio permanently embedded rather than adjusted ad hoc and in accordance with any political determinations. At present this would provide the ACT with one senator per 80,633 persons and the NT with one senator per 43,900 persons. These figures are roughly similar to Tasmania's current senator per person ratio.

The rationale is twofold. First, the self-governing Territories discharge State-like powers and govern almost one million Australians. That fact alone warrants a guaranteed, durable voice in the nation's House of review based on a fixed rule. And like the States, their representation should be substantive rather than token, sufficient to reflect the population for which they are responsible and the power they now exercise.

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[35] Australian Bureau of Statistics, 'National, State and Territory Population (March 2025)', *ABS Website* (online, 18 September 2025) <https://www.abs.gov.au/statistics/people/population/national-state-and-territory-population/mar-2025>

[36] *Constitution of Switzerland*, Art 150.

Secondly, while the Territories are not co-equal parties to the federal compact, that status should be reflected in the number of senators they receive. Territorial representation must be awarded in a manner which does not dilute that of the Original States, yet is not so insignificant (as it presently is) to be merely symbolic and incapable of fulfilling the House's core functions as a representative and review body.

Fixing their Senate entitlement at half of the Original State's would provide a careful balance between these priorities. It would allow Territory senators to be elected on staggered terms, and decrease the ratio of senator per person to a number more in line with Tasmania's. It would recognise that while the Territories are not Original States, they play an important role in our federation and are deserving of a clear stable rule for their representation in the Senate.

A fixed entitlement equal to half that of the States could also scale automatically with any future increases to the size of the Parliament and avoid the political debate over the Territories' representation in the Senate.

To those who believe this would be unfair, I contend that is the purpose of the Senate. It is designed to represent the constituent units of our federation. We must now acknowledge that as nearly one million Australians now reside in the Territories and given the significant power they wield, they are deserving of such fixed representation which is aligned with their contemporary role in the Commonwealth.

The Territories should therefore receive seven senators each which should be elected in halves. This would increase the Senate to 98. Under Division 3 of the *Commonwealth Electoral Act 1918* (Cth) the House would accordingly be expanded to around 175 members.

As per my previous comments about reform of the nexus and the language of Part II of the *Constitution*, I also believe the Government should contend that the spirit of the nexus provision is that the House should be twice the size of ALL senators, not just State senators. If this was done, the House could expand to 196 members, retaining the 2:1 ratio between the Houses as intended by the drafters of the *Constitution*.

Recommendation 10: The committee should recommend s 40 of the *Commonwealth Electoral Act 1918* (Cth) be amended to entitle the Australian Capital Territory and the Northern Territory to receive a number of senators equal to half of an Original State's entitlement (in the case of an odd number, rounded down to the nearest whole number).

Recommendation 11: The Senate should be expanded so each State receives 14 senators and the Territories 7 senators. Accordingly, this would increase representation in the House of Representatives to 174 unless the Parliament revised Division 3 of the *Commonwealth Electoral Act 1918* (Cth) to revise the calculation of

the population quota for the House to be calculated on the basis of all senators, not just the number of State senators.

Figure 5: Likely 2025 Senate Election results with seven State senators and four for the Territories

	GRN	ALP	IND	JLN	L/NP	PHON	UAP
NSW	1	3	0	0	2	1	0
VIC	1	3	0	0	3	0	0
QLD	1	2	0	0	3	1	0
WA	1	3	0	0	2	1	0
SA	1	3	0	0	2	1	0
TAS	1	3	0	1	2	0	0
ACT	0	1	2	0	1	0	0
NT	0	2	0	0	2	0	0
TOTAL	**6**	**20**	**2**	**1**	**17**	**4**	**0**

Figure 6: Likely 2022 Senate Election results with seven State senators and three senators for the Territories

	GRN	ALP	IND	JLN	L/NP	PHON	UAP
NSW	1	3	0	0	3	0	0
VIC	1	3	0	0	3	0	0
QLD	1	2	0	0	3	1	0
WA	1	3	0	0	3	0	0
SA	1	3	0	0	3	0	0
TAS	1	2	0	1	3	0	0
ACT	0	1	1	0	1	0	0
NT	1	1	0	0	1	0	0
TOTAL	**7**	**18**	**1**	**1**	**20**	**1**	**0**

Figure 7: Hypothetical 2025-2028 Senate (without party switches)

	GRN	ALP	IND	JLN	L/NP	PHON	UAP
2022 Class	7	18	1	1	20	1	0
2025 Class	6	20	2	1	17	4	0
TOTAL[37]	**13 (+1)**	**38 (+9)**	**3 (+2)**	**2**	**37 (+10)**	**5 (+1)**	**0 (-1)**

[37] Changes compared to actual 2022 and 2025 Senate election without party switches. Results calculated through ConcreteSTV (online, 2025) <vote.andrewconway.org>

I thank the committee for considering what is a lengthy and technical submission on this matter, but if a referendum is to succeed on fixed four-year terms, the committee must ensure these matters are addressed. Any referendum on fixed-terms will require compromise and consensus building from all sides in order to reach the necessary support of all major parties and key voices on the crossbench. This is the only way a referendum on this question can succeed.

I also hope the Committee will consider devising a fixed rule for the Senate representation of the Territories to ensure their role in contemporary Australian society is adequately acknowledged.

Please reach out to me if you have any questions on [redacted] or via email at [redacted]

Yours sincerely,

[redacted]

Thomas Stephen
14 October 2025

ATTACHMENT 1 – SUMMARY OF RECOMMENDATIONS

Recommendation 1: The committee should recommend the adoption of fixed four-year terms for the House of Representatives (see Attachments 2 and 3).

Recommendation 2: The committee should recommend the adoption of simultaneous elections for the House of Representatives and the Senate (see Attachments 2 and 3)

Recommendation 3: If fixed terms are put to a referendum, it should include a change to s 57 so that a double dissolution cannot be called within 12 months of the next ordinary House election (see Attachments 2 and 3)

Recommendation 4: If fixed terms are adopted, the Senate's power to block supply for the ordinary annual services should be eliminated or if exercised should allow the Governor-General in Council to dissolve the Parliament (causing a House and half-Senate election) (see Attachments 2 and 3).

Recommendation 5: The committee should recommend to the Government that any referendum on fixed four-year terms should provide electors with the choice of whether the Senate should move to four- or eight-year terms.

Recommendation 6: If the committee recommends the Senate moves to four-year terms, section 57 should be modified to allow for the resolution of a dispute between the two Houses to be settled by either: (a) a joint sitting in which a Bill can be adopted with a three-fifths majority; and/or (b) a public referendum (see Attachment 3).

Recommendation 7: If the Government prefers not to move ahead with a referendum, the Committee should recommend the adoption of a statutory fixed term for the Parliament.

Recommendation 8: If there is a referendum on fixed terms, the Government should amend the nexus provision to ensure it includes ALL senators, not just State senators in the calculation of members (see Attachment 4).

Recommendation 9: If there is a referendum on fixed terms, the Government should take the opportunity to clarify the Territories' right to senators by removing references to the States in Part II. This would include changes to s 122 to limit how many senators the Parliament may allocate to a Territory at no greater than half that of an Original State (see Attachment 5).

Recommendation 10: The committee should recommend s 40 of the *Commonwealth Electoral Act 1918* (Cth) be amended to entitle the Australian Capital Territory and the Northern Territory to receive a number of senators equal to half of an Original State's entitlement (in the case of an odd number, rounded down to the nearest whole number).

Recommendation 11: The Senate should be expanded so each State receives 14 senators and the Territories 7 senators. Accordingly, this would increase representation in the House of Representatives to 174 unless the Parliament revised Division 3 of the *Commonwealth Electoral Act 1918* (Cth) to revise the calculation of the population quota for the House to be calculated on the basis of all senators, not just the number of State senators.

ATTACHMENT 2 – FIXED FOUR YEAR HOUSE TERMS, EIGHT YEAR SENATE TERMS (PREFERRED)

5 Sessions of Parliament, prorogation and dissolution

The Governor-General may appoint such times for holding the sessions of the Parliament as he thinks fit, and may also from time to time, by Proclamation or otherwise, prorogue the Parliament, and may in like manner dissolve the House of Representatives in accordance with section 28.

Summoning Parliament

After any general election the Parliament shall be summoned to meet not later than thirty days after the day appointed for the return of the writs.

First session

The Parliament shall be summoned to meet not later than six months after the establishment of the Commonwealth.

7 The Senate

The Senate shall be composed of senators for each State and territories granted representation under section 122, directly chosen by the people of the States and Territories, voting, until the Parliament otherwise provides, as one electorate.

~~But until the Parliament of the Commonwealth otherwise provides, the Parliament of the State of Queensland, if that State be an Original State, may make laws dividing the State into divisions and determining the number of senators to be chosen for each division, and in the absence of such provision the State shall be one electorate.~~

Until the Parliament otherwise provides there shall be six senators for each Original State. The Parliament may make laws increasing or diminishing the number of senators for each State, but so that equal representation of the several Original States shall be maintained and that no Original State shall have less than six senators.

~~The senators shall be chosen for a term of six years, and the names of the senators chosen for each State shall be certified by the Governor to the Governor-General.~~

12 Issue of writs

(1) The Governor-General ~~of any State~~ may cause writs to be issued for elections of senators ~~for the State~~.

(2) In case of the dissolution of the Senate under section 57, the writs shall be issued within ten days from the proclamation of such dissolution.

13 Rotation of senators

~~As soon as may be after the Senate first meets, and after each first meeting of the Senate following a dissolution thereof, the Senate shall divide the senators chosen for each State into two classes, as nearly equal in number as practicable; and the places of the senators of the first class shall become vacant at the expiration of three years, and the places of those of the second class at the expiration of six years, from the beginning of their term of service; and afterwards the places of senators shall become vacant at the expiration of six years from the beginning of their term of service.~~

~~The election to fill vacant places shall be made within one year before the places are to become vacant.~~

~~For the purposes of this section the term of service of a senator shall be taken to begin on the first day of July following the day of his election, except in the cases of the first election and of the election next after any dissolution of the Senate, when it shall be taken to begin on the first day of July preceding the day of his election.~~

(1) Senators are to be chosen for a term which lasts until the expiry or dissolution of the second House of Representatives after they were chosen.

(2) As soon as may be after the Senate meets following a dissolution of the Senate, the Senate shall divide the members chosen into two classes, as nearly equal in number as practicable—

(a) subsection (1) of this section applies to senators included in the first class but the term of service of senators included in the second class expires upon the expiry or dissolution of the first House of Representatives to expire or be dissolved after they were chosen; and

(b) afterwards the places of senators shall become vacant at the expiry or dissolution of the second House of Representatives to expire or be dissolved after they were chosen.

14 Further provision for rotation

Whenever the number of senators ~~for a State~~ is increased or diminished, the Parliament of the Commonwealth may make such provision for the vacating of the places of senators ~~for the State~~ as it deems necessary to maintain regularity in the rotation.

15 Casual vacancies

If the place of a senator becomes vacant before the expiration of his term of service, the Houses of Parliament of the State for which he was chosen, sitting and voting together, or, if there is only one House of that Parliament, that House, shall choose a person to hold the place until the expiration of the term. But if the Parliament of the State is not in session when the vacancy is notified, the Governor of the State, with the advice of the Executive Council thereof, may appoint a person to hold the place until the expiration of fourteen days from the beginning of the next session of the Parliament of the State or the expiration of the term, whichever first happens. Where a vacancy has at any time occurred in the place of a senator chosen by the people of a State and, at the time when ~~he was~~ they were so chosen, ~~he~~ the person was publicly recognized by a particular political party as being an endorsed candidate of that party and publicly represented ~~himself~~ themselves to be such a candidate, a person chosen or appointed under this section in consequence of that vacancy, or in consequence of that vacancy and a subsequent vacancy or vacancies, shall, unless there is no member of that party available to be chosen or appointed, be a member of that party.

Where:

(a) in accordance with the last preceding paragraph, a member of a particular political party is chosen or appointed to hold the place of a senator whose place had become vacant; and

(b) before taking ~~his~~ their seat ~~he~~ the person ceases to be a member of that party (otherwise than by reason of the party having ceased to exist);

~~he~~ they shall be deemed not to have been so chosen or appointed and the vacancy shall be again notified in accordance with section twenty-one of this Constitution. The name of any senator chosen or appointed under this section shall be certified by the Governor of the State to the Governor-General.

~~If the place of a senator chosen by the people of a State at the election of senators last held before the commencement of the Constitution Alteration (Senate Casual Vacancies) 1977 became vacant before that commencement and, at that commencement, no person chosen by the House or Houses of Parliament of the State, or appointed by the Governor of the State, in consequence of that vacancy, or in consequence of that vacancy and a subsequent vacancy or vacancies, held~~

~~office, this section applies as if the place of the senator chosen by the people of the State had become vacant after that commencement.~~

~~A senator holding office at the commencement of the *Constitution Alteration (Senate Casual Vacancies) 1977*, being a senator appointed by the Governor of a State in consequence of a vacancy that had at any time occurred in the place of a senator chosen by the people of the State, shall be deemed to have been appointed to hold the place until the expiration of fourteen days after the beginning of the next session of the Parliament of the State that commenced or commences after he was appointed and further action under this section shall be taken as if the vacancy in the place of the senator chosen by the people of the State had occurred after that commencement.~~

~~Subject to the next succeeding paragraph, a senator holding office at the commencement of the *Constitution Alteration (Senate Casual Vacancies) 1977* who was chosen by the House or Houses of Parliament of a State in consequence of a vacancy that had at any time occurred in the place of a senator chosen by the people of the State shall be deemed to have been chosen to hold office until the expiration of the term of service of the senator elected by the people of the State.~~

~~If, at or before the commencement of the *Constitution Alteration (Senate Casual Vacancies) 1977*, a law to alter the Constitution entitled "*Constitution Alteration (Simultaneous Elections) 1977*" came into operation,[10] a senator holding office at the commencement of that law who was chosen by the House or Houses of Parliament of a State in consequence of a vacancy that had at any time occurred in the place of a senator chosen by the people of the State shall be deemed to have been chosen to hold office:~~

~~(a) if the senator elected by the people of the State had a term of service expiring on the thirtieth day of June, One thousand nine hundred and seventy-eight – until the expiration or dissolution of the first House of Representatives to expire or be dissolved after that law came into operation; or~~

~~(b) if the senator elected by the people of the State had a term of service expiring on the thirtieth day of June, One thousand nine hundred and eighty-one – until the expiration or dissolution of the second House of Representatives to expire or be dissolved after that law came into operation; or, if there is an earlier dissolution of the Senate, until that dissolution.~~

28 Duration of House of Representatives

~~Every House of Representatives shall continue for three years from the first meeting of the House, and no longer, but may be sooner dissolved by the Governor-General.~~

(1) Every Parliament expires on the Friday before the [X] Saturday in [MONTH] in the third calendar year after the calendar year in which the writs are returned for the election of the House of Representatives.

(2) The Governor-General may, before the date in subsection (1), dissolve the House of Representatives and issue writs for a general election of members of the House of Representatives if—

(a) each of the following happens—

(i) a no confidence motion is passed, or a confidence motion is defeated, in the House of Representatives; and

(ii) within eight days after the passage or defeat of the motion mentioned in subparagraph (i), a confidence motion is not passed in the House of Representatives; and

(iii) the Governor-General considers no government can be formed that will command the confidence of a majority of the House of Representatives; or

(b) the House of Representatives rejects a Bill for the ordinary annual services of the Government;

(c) the House of Representatives fails to pass a Bill for the ordinary annual services of the Government before the date notified by the Governor-General in Council, by message given to the House that the appropriation is required; or

(d) the Governor-General is acting pursuant to section 57.

32 Writs for general election

~~The Governor-General in Council may cause writs to be issued for general elections of members of the House of Representatives.~~

~~After the first general election, the writs shall be issued within ten days from the expiry of a House of Representatives or from the proclamation of a dissolution thereof.~~

(1) The Governor-General must issue writs for general elections of members of the House of Representatives and the Senate.

(2) The writs must be issued within ten days from the expiry of the House of Representatives or from a proclamation of its dissolution

(3) The writs must name the day for taking the poll at the general election as—

(a) if the previous House expired – the [X] Saturday in [MONTH] next after the expiry, or

(b) if the previous House was dissolved – a Saturday that is no later than the thirtieth day after the date of the issue of the writs.

53 Powers of the Houses in respect for legislation

(1) Proposed laws appropriating revenue or moneys, or imposing taxation, shall not originate in the Senate. But a proposed law shall not be taken to appropriate revenue or moneys, or to impose taxation, by reason only of its containing provisions for the imposition or appropriation of fines or other pecuniary penalties, or for the demand or payment or appropriation of fees for licences, or fees for services under the proposed law.

(2) The Senate may not amend proposed laws imposing taxation, or proposed laws appropriating revenue or moneys for the ordinary annual services of the Government.

(3) The Senate may not amend any proposed law so as to increase any proposed charge or burden on the people.

(4) The Senate may at any stage return to the House of Representatives any proposed law which the Senate may not amend, requesting, by message, the omission or amendment of any items or provisions therein. And the House of Representatives may, if it thinks fit, make any of such omissions or amendments, with or without modifications.

(5) If—

(a) the House of Representatives passes a proposed law which appropriates money for the ordinary annual services and the Senate—

(i) rejects or fails to pass the proposed law within one month in the same or next session; or

(ii) returns the proposed law to the House of Representatives with a message suggesting any amendment to which the House of Representatives does not agree;

(b) the House of Representatives may direct that the proposed law, with or without any amendment suggested by the Senate, be presented to the Governor-General for assent, notwithstanding that the Senate has not consented to the proposed law.

(6) Except as provided in this section, the Senate shall have equal power with the House of Representatives in respect of all proposed laws.

57 Disagreement between the Houses

If the House of Representatives passes any proposed law, and the Senate rejects or fails to pass it, or passes it with amendments to which the House of Representatives will not agree, and if after an interval of three months the House of Representatives, in the same or the next session, again passes the proposed law with or without any amendments which have been made, suggested, or agreed to by the Senate, and the Senate rejects or fails to pass it, or passes it with amendments to which the House of Representatives will not agree, the Governor-General may, within one month after the last rejection or failure to pass, dissolve the Senate and the House of Representatives simultaneously. But such dissolution shall not take place within ~~six months~~ one year before the date of the expiry of the House of Representatives by effluxion of time.

If after such dissolution the House of Representatives again passes the proposed law, with or without any amendments which have been made, suggested, or agreed to by the Senate, and the Senate rejects or fails to pass it, or passes it with amendments to which the House of Representatives will not agree, the Governor-General may convene a joint sitting of the members of the Senate and of the House of Representatives.

The members present at the joint sitting may deliberate and shall vote together upon the proposed law as last proposed by the House of Representatives, and upon amendments, if any, which have been made therein by one House and not agreed to by the other, and any such amendments which are affirmed by an absolute majority of the total number of the members of the Senate and House of Representatives shall be taken to have been carried, and if the proposed law, with the amendments, if any, so carried is affirmed by an absolute majority of the total number of the members of the Senate and House of Representatives, it shall be taken to have been duly passed by both Houses of the Parliament, and shall be presented to the Governor-General for the Queen's assent.

ATTACHMENT 3 – FIXED FOUR YEAR HOUSE AND SENATE TERMS

5 Sessions of Parliament, prorogation and dissolution

The Governor-General may appoint such times for holding the sessions of the Parliament as he thinks fit, and may also from time to time, by Proclamation or otherwise, prorogue the Parliament, and may in like manner dissolve the House of Representatives in accordance with section 28.

Summoning Parliament

After any general election the Parliament shall be summoned to meet not later than thirty days after the day appointed for the return of the writs.

First session

The Parliament shall be summoned to meet not later than six months after the establishment of the Commonwealth.

7 The Senate

The Senate shall be composed of senators for each State and territories granted representation under section 122, directly chosen by the people of the States and Territories, voting, until the Parliament otherwise provides, as one electorate.

~~But until the Parliament of the Commonwealth otherwise provides, the Parliament of the State of Queensland, if that State be an Original State, may make laws dividing the State into divisions and determining the number of senators to be chosen for each division, and in the absence of such provision the State shall be one electorate.~~

Until the Parliament otherwise provides there shall be six senators for each Original State. The Parliament may make laws increasing or diminishing the number of senators for each State, but so that equal representation of the several Original States shall be maintained and that no Original State shall have less than six senators.

~~The senators shall be chosen for a term of six years, and the names of the senators chosen for each State shall be certified by the Governor to the Governor-General.~~

12 Issue of writs

The Governor-General ~~of any State~~ may cause writs to be issued for elections of senators ~~for the State~~. In case of the dissolution of the Senate the writs shall be issued within ten days from the proclamation of such dissolution.

13 ~~Rotation of senators~~ Terms of senators

~~As soon as may be after the Senate first meets, and after each first meeting of the Senate following a dissolution thereof, the Senate shall divide the senators chosen for each State into two classes, as nearly equal in number as practicable; and the places of the senators of the first class shall become vacant at the expiration of three years, and the places of those of the second class at the expiration of six years, from the beginning of their term of service; and afterwards the places of senators shall become vacant at the expiration of six years from the beginning of their term of service.~~

~~The election to fill vacant places shall be made within one year before the places are to become vacant.~~

~~For the purposes of this section the term of service of a senator shall be taken to begin on the first day of July following the day of his election, except in the cases of the first election and of the election next after any dissolution of the Senate, when it shall be taken to begin on the first day of July preceding the day of his election.~~

Senators are to be chosen for a term which lasts until the expiry or dissolution of the House of Representatives after they were chosen.

~~14 Further provision for rotation~~

~~Whenever the number of senators for a State is increased or diminished, the Parliament of the Commonwealth may make such provision for the vacating of the places of senators for the State as it deems necessary to maintain regularity in the rotation~~

15 Casual vacancies

If the place of a senator becomes vacant before the expiration of his term of service, the Houses of Parliament of the State for which he was chosen, sitting and voting together, or, if there is only one House of that Parliament, that House, shall choose a person to hold the place until the expiration of the term. But if the Parliament of the State is not in session when the vacancy is notified, the Governor of the State, with the advice of the Executive Council thereof, may appoint a person to hold the place until the expiration of fourteen days from the beginning of the next session of the Parliament of the State or the expiration of the term, whichever first happens.

Where a vacancy has at any time occurred in the place of a senator chosen by the people of a State and, at the time when ~~he was~~ they were so chosen, ~~he~~ the person was publicly recognized by a particular political party as being an endorsed candidate of that party and publicly represented ~~himself~~ themselves to be such a candidate, a person chosen or appointed under this section in consequence of that vacancy, or in consequence of that vacancy and a subsequent vacancy or vacancies, shall, unless there is no member of that party available to be chosen or appointed, be a member of that party.

Where:

(c) in accordance with the last preceding paragraph, a member of a particular political party is chosen or appointed to hold the place of a senator whose place had become vacant; and

(d) before taking ~~his~~ their seat ~~he~~ the person ceases to be a member of that party (otherwise than by reason of the party having ceased to exist);

~~he~~ they shall be deemed not to have been so chosen or appointed and the vacancy shall be again notified in accordance with section twenty-one of this Constitution. The name of any senator chosen or appointed under this section shall be certified by the Governor of the State to the Governor-General.

~~If the place of a senator chosen by the people of a State at the election of senators last held before the commencement of the Constitution Alteration (Senate Casual Vacancies) 1977 became vacant before that commencement and, at that commencement, no person chosen by the House or Houses of Parliament of the State, or appointed by the Governor of the State, in consequence of that vacancy, or in consequence of that vacancy and a subsequent vacancy or vacancies, held office, this section applies as if the place of the senator chosen by the people of the State had become vacant after that commencement.~~

~~A senator holding office at the commencement of the *Constitution Alteration (Senate Casual Vacancies) 1977*, being a senator appointed by the Governor of a State in consequence of a vacancy that had at any time occurred in the place of a senator chosen by the people of the State, shall be deemed to have been appointed to hold the place until the expiration of fourteen days after the beginning of the next session of the Parliament of the State that commenced or commences after he was appointed and further action under this section shall be taken as if the vacancy in the place of the senator chosen by the people of the State had occurred after that commencement.~~

~~Subject to the next succeeding paragraph, a senator holding office at the commencement of the *Constitution Alteration (Senate Casual Vacancies) 1977* who~~

~~was chosen by the House or Houses of Parliament of a State in consequence of a vacancy that had at any time occurred in the place of a senator chosen by the people of the State shall be deemed to have been chosen to hold office until the expiration of the term of service of the senator elected by the people of the State.~~

~~If, at or before the commencement of the *Constitution Alteration (Senate Casual Vacancies) 1977*, a law to alter the Constitution entitled "*Constitution Alteration (Simultaneous Elections) 1977*" came into operation,[10] a senator holding office at the commencement of that law who was chosen by the House or Houses of Parliament of a State in consequence of a vacancy that had at any time occurred in the place of a senator chosen by the people of the State shall be deemed to have been chosen to hold office:~~

~~(c) if the senator elected by the people of the State had a term of service expiring on the thirtieth day of June, One thousand nine hundred and seventy-eight – until the expiration or dissolution of the first House of Representatives to expire or be dissolved after that law came into operation; or~~

~~(d) if the senator elected by the people of the State had a term of service expiring on the thirtieth day of June, One thousand nine hundred and eighty-one – until the expiration or dissolution of the second House of Representatives to expire or be dissolved after that law came into operation; or, if there is an earlier dissolution of the Senate, until that dissolution.~~

28 Duration of House of Representatives

~~Every House of Representatives shall continue for three years from the first meeting of the House, and no longer, but may be sooner dissolved by the Governor-General.~~

(1) Every Parliament expires on the Friday before the [X] Saturday in [MONTH] in the third calendar year after the calendar year in which the writs are returned for the election of the House of Representatives.

(2) The Governor-General may, before the date in subsection (1), dissolve the House of Representatives and issue writs for a general election of members of the House of Representatives if—

(a) each of the following happens—

(i) a no confidence motion is passed, or a confidence motion is defeated, in the House of Representatives; and

(ii) within eight days after the passage or defeat of the motion mentioned in subparagraph (i), a confidence motion is not passed in the House of Representatives; and

(iii) the Governor-General considers no government can be formed that will command the confidence of a majority of the House of Representatives; or

(b) the House of Representatives rejects a Bill for the ordinary annual services of the Government;

(c) the House of Representatives fails to pass a Bill for the ordinary annual services of the Government before the date notified by the Governor-General in Council, by message given to the House that the appropriation is required.

32 Writs for general election

~~The Governor-General in Council may cause writs to be issued for general elections of members of the House of Representatives.~~

~~After the first general election, the writs shall be issued within ten days from the expiry of a House of Representatives or from the proclamation of a dissolution thereof.~~

(1) The Governor-General must issue writs for general elections of members of the House of Representatives and the Senate.

(2) The writs must be issued within ten days from the expiry of the House of Representatives or from a proclamation of its dissolution

(3) The writs must name the day for taking the poll at the general election as—

(a) if the previous House expired – the [X] Saturday in [MONTH] next after the expiry, or

(b) if the previous House was dissolved – a Saturday that is no later than the thirtieth day after the date of the issue of the writs.

53 Powers of the Houses in respect for legislation

(1) Proposed laws appropriating revenue or moneys, or imposing taxation, shall not originate in the Senate. But a proposed law shall not be taken to appropriate revenue or moneys, or to impose taxation, by reason only of its containing

provisions for the imposition or appropriation of fines or other pecuniary penalties, or for the demand or payment or appropriation of fees for licences, or fees for services under the proposed law.

(2) The Senate may not amend proposed laws imposing taxation, or proposed laws appropriating revenue or moneys for the ordinary annual services of the Government.

(3) The Senate may not amend any proposed law so as to increase any proposed charge or burden on the people.

(4) The Senate may at any stage return to the House of Representatives any proposed law which the Senate may not amend, requesting, by message, the omission or amendment of any items or provisions therein. And the House of Representatives may, if it thinks fit, make any of such omissions or amendments, with or without modifications.

(5) If—

(a) the House of Representatives passes a proposed law which appropriates money for the ordinary annual services and the Senate—

(i) rejects or fails to pass the proposed law within one month in the same or next session; or

(ii) returns the proposed law to the House of Representatives with a message suggesting any amendment to which the House of Representatives does not agree;

(b) the House of Representatives may direct that the proposed law, with or without any amendment suggested by the Senate, be presented to the Governor-General for assent, notwithstanding that the Senate has not consented to the proposed law.

(6) Except as provided in this section, the Senate shall have equal power with the House of Representatives in respect of all proposed laws.

57 Disagreement between the Houses

If the House of Representatives passes any proposed law, and the Senate rejects or fails to pass it, or passes it with amendments to which the House of Representatives will not agree, and if after an interval of ~~three~~ twelve months the House of Representatives, in the same or the next session, again passes the

proposed law with or without any amendments which have been made, suggested, or agreed to by the Senate, and the Senate rejects or fails to pass it, or passes it with amendments to which the House of Representatives will not agree, ~~the Governor-General may dissolve the Senate and the House of Representatives simultaneously. But such dissolution shall not take place within six months one year before the date of the expiry of the House of Representatives by effluxion of time.~~

~~If after such dissolution the House of Representatives again passes the proposed law, with or without any amendments which have been made, suggested, or agreed to by the Senate, and the Senate rejects or fails to pass it, or passes it with amendments to which the House of Representatives will not agree~~, the Governor-General may:

(a) convene a joint sitting of the members of the Senate and of the House of Representatives. The members present at the joint sitting may deliberate and shall vote together upon the proposed law as last proposed by the House of Representatives, and upon amendments, if any, which have been made therein by one House and not agreed to by the other, and any such amendments which are affirmed by an ~~absolute~~ three-fifths majority of the total number of the members of the Senate and House of Representatives shall be taken to have been carried, and if the proposed law, with the amendments, if any, so carried is affirmed by an absolute majority of the total number of the members of the Senate and House of Representatives, it shall be taken to have been duly passed by both Houses of the Parliament, and shall be presented to the Governor-General for the Queen's assent~~.~~; or

(b) submit the proposed law as last proposed by the House of Representatives to the electors qualified to vote for members of the House of Representatives. When a proposed law is submitted to the electors under this section, the vote shall be taken in such manner as the Parliament prescribes. If at the referendum a majority of the electors voting approve the proposed law, it shall be presented to the Governor-General for assent.

ATTACHMENT 4 – NEXUS REFORM

24 Constitution of House of Representatives

The House of Representatives shall be composed of members directly chosen by the people of the Commonwealth, and the number of such members shall be, as nearly as practicable, twice the number of ~~the~~ all senators.

The number of members chosen in the several States and Territories provided representation under section 122 shall be in proportion to the respective numbers of their people in a manner which the Parliament provides. ~~, and shall, until the Parliament otherwise provides, be determined, whenever necessary, in the following manner:~~

~~(i) a quota shall be ascertained by dividing the number of the people of the Commonwealth, as shown by the latest statistics of the Commonwealth, by twice the number of the senators;~~

~~(ii) the number of members to be chosen in each State and Territory shall be determined by dividing~~

~~the number of the people of the State and Territory, as shown by the latest statistics of the Commonwealth, by the quota; and if on such division there is a remainder greater than one-half of the quota, one more member shall be chosen in the State. But notwithstanding anything in this section, five members at least shall be chosen in each Original State.~~

ATTACHMENT 5 – TERRITORY REPRESENTATION IN THE SENATE

122 Government of territories

The Parliament may make laws for the government of any territory surrendered by any State to and accepted by the Commonwealth, or of any territory placed by the Queen under the authority of and accepted by the Commonwealth, or otherwise acquired by the Commonwealth, and may allow the representation of such territory in either House of the Parliament ~~to the extent and on the terms which it thinks fit~~ in accordance with its population, and a number of senators which the Parliament thinks fit, but no territory may receive a number of senators which is greater than half that of an Original State.